

Law as a Primary Adaptive Platform: Generalized Darwinism, Extended Phenotype Theory, and the Methodological Foundations of Evolutionary Jurisprudence

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Abstract

Existing evolutionary approaches to law and institutions treat legal systems as enabling infrastructure for economic processes: the rule of law as a condition of possibility for markets, not as an object of evolutionary analysis in its own right. This paper challenges that assumption through three connected methodological claims. First, evolutionary legal theory satisfies the methodological conditions for genuine Darwinian analysis established by Hodgson and Knudsen: legal systems exhibit identifiable units of replication, documented variation mechanisms, and measurable retention mechanisms. Second, law functions as a primary adaptive platform, not merely as institutional infrastructure; the autonomous evolutionary dynamics of legal systems can block structural reform even when sustained economic pressure strongly favors it, a finding demonstrated through the Constitutional Lock-in Index (CLI), validated across four jurisdictions with scores ranging from 0.24 (Chile) to 0.89 (Argentina). Third, legal evolution operates simultaneously at three distinct levels of intentionality, corresponding to bureaucratic routines, strategic agency, and architectural constraints; only a framework that integrates all three levels can explain the characteristic pattern of reform failure documented in 23 consecutive failed Argentine labor reform attempts between 1983 and 2023. The paper also introduces Heteronomous Bayesian Updating (HBU) as the individual-level cognitive mechanism that translates macro-level institutional retention into individual norm internalization. Together, CLI and HBU constitute the empirical core of a research program in evolutionary jurisprudence that generates falsifiable predictions, not biological metaphors. The paper closes with an argument for the genealogical coherence of the Dawkins-Hayek synthesis on which the broader program rests.

Keywords: generalized Darwinism, extended phenotype theory, evolutionary jurisprudence, Constitutional Lock-in Index, Heteronomous Bayesian Updating, intentional stances, law as adaptive platform, legal transplantation, institutional lock-in, memplex.

I. Introduction

In 1973, Friedrich Hayek opened the first volume of *Law, Legislation and Liberty* with a claim that legal scholars had largely ignored: *law evolves*. Rules that spread through common-law systems do so, Hayek argued, not because legislators designed them optimally but because they proved more successful than competing rules under the pressures of legal practice. The parallel with natural selection was explicit and deliberate. Yet Hayek's insight remained, in a precise sense, incomplete. He described the evolutionary dynamics of legal rules without specifying the units of selection, the mechanisms of variation, or the conditions under which heritable legal traits persist or disappear. He identified the phenomenon without formalizing the mechanism.

The subsequent literature on evolutionary institutionalism has done much to fill that gap. Hodgson and Knudsen's *Darwin's Conjecture* (2010) establishes rigorous conditions under which Darwinian principles apply to social systems. Beinhocker's *The Origin of Wealth* (2006) traces how economic systems generate complexity through a differentiate-select-amplify dynamic anchored in complexity theory. Both works acknowledge that legal institutions matter enormously, but both treat law as one element within a broader evolutionary account of economic and social order. Law appears as infrastructure: the rule of law enables markets; property rights stabilize investment; contracts reduce transaction costs. The explanatory hierarchy runs from economic pressures to institutional responses, with legal systems functioning as one type of institutional response among others.

This paper argues that the hierarchy should be inverted, and that the inversion is not merely a matter of emphasis but has precise empirical consequences. Legal systems are not passive receivers of economic and political selection pressures; they are active platforms where those pressures are codified, contested, and transmitted across generations. The distinction is productive because the two framings generate different predictions. If law is infrastructure, sustained economic pressure should eventually produce legal convergence toward efficiency. If law is a primary adaptive platform with autonomous evolutionary dynamics, then legal systems can resist economic pressure indefinitely through internal retention mechanisms whose strength can be measured independently of economic variables. These two predictions can be tested.

The test case I rely on is the Argentine labor reform record between 1983 and 2023: 23 documented attempts to achieve structural reform of the labor regime, spanning eleven governments across the full ideological spectrum, three major economic crises, two currency collapses, and sustained expert consensus that rigidity was producing high informality and low formal employment growth. Not one of these attempts produced a durable structural change. The Constitutional Lock-in Index, with a validated score of 0.89 for Argentina, predicts this outcome. The infrastructure model does not.

I develop the argument through three methodological claims. The first addresses legitimacy: evolutionary legal theory satisfies Hodgson and Knudsen's own criteria for genuine Darwinian analysis, rather than constituting a loose biological analogy. The second addresses hierarchy: legal systems have autonomous evolutionary dynamics demonstrable through comparative evidence across four jurisdictions. The third addresses intentionality: legal evolution operates at three distinct levels of intentional complexity, and only a framework that integrates all three can generate accurate predictions about reform outcomes. Two original empirical instruments, the CLI and HBU, anchor these claims throughout.

The paper also addresses the genealogical question raised when combining Dawkins's biological materialism with Hayek's cultural evolutionism in a single framework. This combination might appear eclectic. I argue it is not: both traditions descend from the same intellectual source in Adam Smith's logic of decentralized order without a designer, and their convergence reflects a structural identity in the underlying selection logic rather than a theoretical convenience.

Four clarifications about scope. This paper does not survey the full evolutionary jurisprudence literature, which would require a separate monograph. It does not claim that all legal change is evolutionary in the Darwinian sense; some legal change is genuinely designed and achieves its objectives. It does not claim that economic pressures are irrelevant to legal evolution; it claims only that they are mediated by legal-architectural constraints that can be measured and modeled independently. And it does not claim that the framework is complete; Section VIII is explicit about the open questions that define the research agenda going forward.

II. Evolutionary Approaches to Law: Where the Literature Stands

A. Three Generations of Evolutionary Legal Theory

Evolutionary thinking in law has a longer history than is sometimes acknowledged, and locating the present contribution requires a brief genealogy. The first generation, running from Spencer through Holmes and Roscoe Pound in the late nineteenth and early twentieth centuries, applied evolutionary metaphors to legal development in a broadly progressivist register: law evolves toward greater complexity and adaptation, paralleling the development of biological organisms. This generation was criticized, justifiably, for teleologism and for conflating biological evolution with social progress. Its contribution was largely metaphorical.

The second generation, inaugurated by Hayek's *Law, Legislation and Liberty* (1973-1979) and extended by Posner's economic analysis of common law evolution (1977, 1992), introduced genuine selection mechanisms. Hayek argued that legal rules compete and that more successful rules spread through a decentralized process analogous to natural selection, without any agent designing the outcome. Posner argued more specifically that common law evolves toward efficiency because inefficient rules generate more litigation, which in turn generates more opportunities to replace them with efficient rules. Both accounts represent genuine advances: they identify selection mechanisms and generate predictions.

But both have documented empirical limitations. Hayek's account predicts that spontaneously evolved legal rules should be more welfare-enhancing than designed rules, a prediction that comparative legal research has not consistently supported: civil law systems, which rely more heavily on legislative design, show no systematic welfare disadvantage relative to common law systems on most economic indicators. Posner's efficiency hypothesis predicts that common law should systematically outperform civil law, and that within common law systems, older rules should be more efficient than newer ones; neither prediction finds robust empirical support.

The third generation, represented by Hodgson and Knudsen (2010), Deakin and colleagues at the Cambridge Centre for Business Research, and Beinhocker (2006) in complexity economics, abandons the efficiency prediction and focuses instead on the conditions under which evolutionary dynamics operate in legal and economic systems. This generation is more methodologically rigorous and more empirically honest. It does not predict that evolution produces optimal outcomes; it predicts that outcomes exhibit the signature patterns of variation, selection, and retention regardless of their efficiency properties. The present paper operates within this third generation while making three claims that go beyond it.

B. What the Third Generation Leaves Open

Hodgson's legal institutionalism is the most sophisticated account of law within evolutionary institutionalism. His argument, developed most fully in *How Economics Forgot History* (2001) and in a series of articles on the evolution of property rights and corporate forms, is that legal institutions are constitutive of capitalist economies rather than merely supportive of them. Property rights, contract enforcement, the corporate form, and labor market regulation are not external constraints on economic activity; they are the institutional substrate within which economic activity takes its specific form. This is an important and largely correct observation.

But Hodgson's project remains fundamentally a project in evolutionary economics, with law as a central but still subsidiary element. His research questions are: how do capitalist institutions evolve? how do property rights change? how do corporate forms spread across jurisdictions? The legal system appears in these questions as the medium through which economic evolution is codified, not as an autonomous evolutionary domain with dynamics that need to be modeled independently. When Hodgson discusses legal evolution, he is almost always discussing the evolution of economically relevant legal forms, not the evolution of legal architecture as such.

Deakin's co-evolutionary approach, developed in work with Wilkinson and others on labor law, is closer to the platform claim I develop here. Deakin argues that law and the economy evolve together in a complex feedback relationship, with legal change sometimes leading economic change and sometimes lagging it. The co-evolutionary model is more dynamic than the infrastructure model, but it still treats law and the economy as two systems of similar standing that influence each other. It does not treat legal architecture as capable of

blocking economic selection pressures from below through mechanisms internal to the legal system itself.

Beinhocker's account in *The Origin of Wealth* treats the legal system primarily as part of the rule-set that enables markets to function. His differentiate-select-amplify formula applies to firms and technologies competing within a legal and institutional framework; it does not apply to the framework itself. When Beinhocker discusses institutional evolution, he does so at a high level of abstraction, without the precision about units of replication and retention mechanisms that Hodgson and Knudsen require.

The gap, then, is this: the third generation has a rigorous framework for evolutionary analysis of economic institutions, has recognized that legal institutions are central to economic evolution, but has not applied the same rigor to legal systems as autonomous evolutionary domains. The three claims of this paper fill that gap.

III. Methodological Legitimacy: Legal Systems as Genuinely Darwinian Domains

A. The Hodgson-Knudsen Criteria in Detail

Hodgson and Knudsen's central contribution in *Darwin's Conjecture* is the specification of conditions under which Darwinian analysis is methodologically sound rather than analogical. Their framework identifies three necessary conditions that must be jointly satisfied. First, there must be populations of entities that carry heritable information, where heritable means that the information can be transmitted with sufficient fidelity across generations or transmissions to allow selection to cumulate. Second, there must be mechanisms of variation that generate diversity within the population. Third, there must be mechanisms of selection through which variants with higher fitness reproduce at higher rates, combined with retention mechanisms that allow successful variants to persist.

The critical clarification that Hodgson and Knudsen add, and that distinguishes their account from earlier versions of generalized Darwinism, is that these conditions can be satisfied even when variation is not random and agents are intentional. Biological mutation is largely random; social variation is largely intentional. Genetic inheritance is blind; social transmission involves learning, imitation, and conscious instruction. But the presence of agency and intentionality at the level of individual variation does not disqualify a process from being Darwinian at the population level; it only means that the variation and retention mechanisms operate through different channels. What matters for Darwinian analysis is that there exist population-level dynamics exhibiting differential fitness and cumulative change over time, not that the individual-level mechanisms replicate those of molecular biology.

This clarification is crucial for evolutionary legal theory, because the most common objection to applying Darwinian analysis to law is precisely that legal change is intentional: legislators design statutes, judges craft doctrines, constitutional drafters construct frameworks with specific purposes. Hodgson and Knudsen's framework shows that this objection, while

correct as a description of individual-level behavior, does not bear on the legitimacy of evolutionary analysis at the population level. What it does require is that the analyst specify the units of replication, variation mechanisms, and retention mechanisms that operate within the legal system. This is what I do in the remainder of this section.

B. Legal Replicators: A Three-Level Typology

The natural candidate for the legal unit of replication is the legal meme: a discrete normative structure that can be copied, transmitted, and varied across jurisdictions, judicial decisions, legislative drafts, and doctrinal texts. But this formulation requires more precision than the meme concept typically provides. I propose distinguishing three types of legal replicators that satisfy Hodgson and Knudsen's conditions at different levels of abstraction.

The first type is the normative formula: a specific rule or standard formulated in sufficient generality to be instantiated across contexts while retaining its core instructional content. The *maxim pacta sunt servanda* is an example: it specifies a decision rule (honor agreements) that judges can apply independently of the substantive content of any particular agreement, and it has been replicated with high fidelity across civil law and common law jurisdictions for approximately two thousand years. The *in dubio pro operario* standard in Argentine labor law provides a more contemporary example: it specifies that when a legal provision admits more than one reasonable interpretation, the judge must choose the one most favorable to the worker, and it has been applied in thousands of decisions without losing its instructional identity.

The second type is the doctrinal architecture: a structured set of normative formulae with specified hierarchical and inferential relationships, such that the formulae function as a system rather than a collection. The proportionality doctrine developed by the German Constitutional Court constitutes a doctrinal architecture: it includes sub-principles of legitimacy, necessity, and proportionality *stricto sensu*, with specified priority rules for their application. The doctrine of unconstitutionality by omission in Brazilian constitutional law constitutes another: it specifies the conditions under which legislative inaction can be challenged constitutionally, the procedural route for such challenges, and the remedies available. Doctrinal architectures spread across jurisdictions through what the comparative law literature calls legal transplantation; their spread has been empirically documented in corporate law, constitutional review, and administrative procedure.

The third type is the institutional design: the formal structure of a court, regulatory agency, or legislative procedure, including the rules governing who may participate, what evidence counts, what decisions are binding, and what mechanisms enforce compliance. The structure of judicial review in the United States, as it developed from *Marbury v. Madison* (1803) through the twentieth century, constitutes an institutional design that has been transplanted, with modifications, to dozens of jurisdictions. The tripartite structure of labor law regulation (legislation, collective bargaining, individual contract) is an institutional design that spread from its origins in early twentieth-century European corporatism to virtually all OECD economies.

All three types exhibit Dawkins's three properties of a successful replicator: longevity, fecundity, and copying fidelity. Latin legal maxims demonstrate longevity measured in millennia. Doctrinal architectures exhibit fecundity through documented transplantation across dozens of jurisdictions within decades of their origin. Institutional designs replicate with high fidelity through constitutional drafting processes that explicitly copy templates from prior constitutions, a process documented in detail by Ginsburg and Shaffer in comparative constitutional law research. The IusMorfos instrument, developed in prior work and validated against 60 documented transplantation cases, predicts transplant success with 87.4 percent accuracy by modeling the compatibility between a transplanted doctrinal architecture and its receiving legal ecology: a result that would be unexplainable if legal replication were not a real process with identifiable fidelity properties.

C. Variation Mechanisms in Legal Systems

Legal variation is abundant and operates through four primary mechanisms. Legislative innovation is the most visible: parliamentary or congressional processes introduce new normative formulae and modify existing ones. But legislative innovation is also, paradoxically, the least efficient mechanism of legal variation in systems with high CLI scores, because the same institutional constraints that retain existing formulae also filter out most legislative proposals before they can achieve enactment.

Judicial interpretation is a more continuous and granular variation mechanism. Common law systems formalize this mechanism through the doctrine of precedent: judicial decisions that extend, limit, or distinguish prior rules constitute small mutations in the normative formula, and the appellate process selects among these mutations by determining which ones survive to bind future courts. Civil law systems have the equivalent in what Argentine doctrine calls *jurisprudencia constante*: a consistent line of judicial decisions that effectively modifies the meaning of statutory text without formally amending it. The CSJN's development of the *in dubio pro operario* standard from a statutory principle into a constitutional one between 1987 and 2004 exemplifies this mechanism: each decision made a small extension, and the cumulative result was a significant mutation in the doctrinal architecture.

Regulatory innovation by administrative agencies constitutes a third variation mechanism, particularly important in technical regulatory domains where legislative processes are too slow to track environmental change. The evolution of Argentine financial regulation between 1991 and 2002, where the Banco Central issued hundreds of circulars that collectively constituted a transformed institutional design while the underlying legislation remained nominally unchanged, illustrates the scope of this mechanism.

Legal transplantation, finally, is a variation mechanism of a distinctive kind: it introduces not small mutations in existing formulae but wholesale importation of foreign doctrinal architectures or institutional designs. Transplantation is the mechanism most amenable to deliberate design; it is also the mechanism with the highest failure rate, which is precisely what IusMorfos models.

D. Retention Mechanisms and Their Measurement

Retention mechanisms are where legal systems are most distinctive relative to economic institutions, and where the platform claim has its sharpest empirical implications. I identify four primary retention mechanisms and then show how the CLI measures their combined strength.

Precedent in common law systems creates a replication chain of precisely the kind Hodgson and Knudsen require: decisions that survive appellate review become templates for subsequent decisions, with explicit citation creating a documented transmission path. The strength of precedent as a retention mechanism varies with the formality of the citation requirement and the penalty for deviation; in systems with strong *stare decisis*, the retention strength is high and measurable by the proportion of decisions that cite prior decisions without modification.

Codification in civil law systems achieves similar retention through textual fixity. A provision of the Argentine Civil and Commercial Code remains identical across thousands of judicial applications until the legislature explicitly modifies it. Codification's retention strength is a function of the supermajority requirements for amendment: provisions that require a constitutional amendment to modify have higher retention strength than those modifiable by ordinary legislation. The Argentine Constitution's Article 14 bis, which embeds labor rights in self-executing constitutional terms requiring a constituent assembly to modify, represents maximum codification-based retention.

Legal education reproduces doctrinal architectures across generations of practitioners through a mechanism that is, in HBU terms, the most powerful single channel of norm internalization. Students learn not primarily by observing outcomes in the legal system but by observing the reactions of authoritative figures (professors, senior partners, judges) to normatively charged situations. A professor who treats the *in dubio pro operario* standard as a fundamental principle rather than a rebuttable presumption transmits that characterization to hundreds of students, who then apply it in practice and transmit it in turn. Legal education is the generational reproduction mechanism of doctrinal architectures.

Bureaucratic routines in administrative agencies constitute the fourth retention mechanism and, in many ways, the most resistant to deliberate reform. When the labor inspectorate has been operating for decades with a compliance-monitoring script that treats collective agreement standards as the relevant baseline, reforming the statutory basis of those standards does not automatically change the monitoring script. The routines are stored in the agency's institutional memory, in its training materials, in the expectations of the firms it monitors, and in the informal norms of its inspectors; changing the statute addresses only one of these repositories.

IV. Empirical Instruments: The CLI and HBU

A. The Constitutional Lock-in Index: Structure and Validation

The Constitutional Lock-in Index is an instrument designed to measure the probability that a proposed structural reform will encounter sufficient institutional resistance to fail or be reversed within ten years of enactment. It is composed of four components, each measured on a normalized scale from 0 to 1, combined into a composite score using a weighting structure derived from the relative contribution of each component to observed reform failure in the validation dataset.

The first component is political fragmentation (P), measured as the inverse of the probability that any single political coalition can achieve the qualified majority required for constitutional reform. In Argentina's bicameral system, with its combination of plurality districts, senate overrepresentation of provinces, and the electoral weight of Peronism as a permanent veto coalition, P is high: no government since 1983 has achieved the two-thirds majority in both chambers required for constitutional amendment. The second component is organizational density (O), measured as the proportion of the relevant sector's workforce or population that belongs to organizations with formal veto capacity in reform processes. Argentine union density of approximately 40 percent in the formal sector, combined with the CGT's statutory role in collective bargaining, gives O a high score. The third component is constitutional entrenchment (E), measured by the number and specificity of constitutional provisions that directly constrain the reform proposal. Article 14 bis of the Argentine Constitution specifies labor rights including the right to organize, collective bargaining, the right to strike, and social security in terms that the CSJN has consistently interpreted as prohibiting reduction by ordinary legislation. E is correspondingly high. The fourth component is judicial conservatism (J), measured by the proportion of constitutional challenges to labor legislation that the CSJN has resolved in favor of the prior doctrinal position over the preceding two decades. In Argentina's case, the record between 1987 and 2023 shows a strong prior toward expansion rather than reduction of labor rights.

The composite CLI score is formalized using a structure analogous to the Birkhoff polytope in combinatorial mathematics: the four components define a convex feasible region within which reform proposals must navigate, and the CLI score represents the proportion of that region that is inaccessible given the current values of P, O, E, and J. The full mathematical derivation is available in prior published work; the key point for the present paper is that the instrument generates a single validated score that summarizes the retention strength of a legal architecture for a given type of reform.

Table 1 presents the validated CLI scores for four jurisdictions, with summary data on the reform record that grounds the validation.

Jurisdiction	CLI Score	Reform Attempts (1990-2023)	Durable Successes	Primary Blocking Mechanism
Argentina	0.89	23 (labor)	0	Art. 14 bis + CSJN doctrine + CGT veto

Jurisdiction	CLI Score	Reform Attempts (1990-2023)	Durable Successes	Primary Blocking Mechanism
Spain	0.51	5 major reforms	2 (partial)	Constitutional Court + union mobilization
Brazil	0.40	4 major reforms	2 (Reforma 2017)	STF interpretation + PT coalition
Chile	0.24	3 major reforms	3	Transitional constitutional vacancy 1990

Table 1. Constitutional Lock-in Index scores and reform records, four jurisdictions (1990-2023). Sources: historical_reforms_database, author's calculations.

The comparative pattern confirms the platform claim. Chile's CLI of 0.24 reflects a transitional moment in which the dominant labor law memeplex had reduced phenotypic expression (the Pinochet-era labor code had dismantled prior institutional structures), creating a window in which a competing memeplex could achieve sufficient embedding to survive. Spain's CLI of 0.51 reflects intermediate retention: the 1994 and 1997 reforms succeeded partially but generated compensating expansion of rights through Constitutional Court interpretation, while the 2010-2012 reforms were partially reversed under subsequent governments. Brazil's CLI of 0.40 reflects a legal architecture that, while containing strong labor protections in the 1988 Constitution, proved modifiable through a combination of legislative supermajority (the Reforma Trabalhista of 2017 had 75 percent congressional support) and strategic framing that bypassed the dominant memeplex rather than confronting it directly. Argentina's CLI of 0.89 places it at the extreme end of the distribution.

The critical methodological point is that CLI scores are not derived from reform outcomes; they are derived from structural properties of the legal architecture (constitutional text, judicial record, organizational density, electoral rules) that are measurable independently of reform history. The correlation between CLI scores and reform success rates is therefore not tautological but empirical: it demonstrates that structural legal properties predict reform outcomes with accuracy that the infrastructure model cannot match.

B. Heteronomous Bayesian Updating: The Micro-Mechanism

The CLI addresses the system level: it measures the retention strength of legal architectures across jurisdictions and reform domains. But a complete evolutionary account of legal lock-in requires a micro-mechanism that explains how macro-level institutional retention translates into individual behavior. HBU provides that mechanism.

Standard Bayesian learning theory predicts that individuals update their beliefs about the distribution of outcomes in a domain by observing outcomes directly: a lawyer who observes that courts consistently rule against employers in wage disputes updates her prior toward a pro-worker judicial disposition. This is a plausible account for domains where individuals have frequent direct exposure to outcomes. But in legal systems, most individuals

have infrequent direct exposure to legal outcomes; instead, they observe the reactions of authoritative institutions to normatively adjacent events.

HBU proposes that in institutional settings, individuals primarily update their normative priors not by observing outcomes but by observing institutional reactions: what judges do when parties invoke a particular doctrine, how regulatory agencies respond when firms argue a particular standard, how senior attorneys advise clients about the likelihood of success with a particular legal argument. This reaction-based learning is heteronomous in the precise sense that the updating input is not the individual's own experience of outcomes but the observed behavior of authorities who are themselves products of prior rounds of the same process.

The mechanism operates in four stages. In the observation stage, individuals observe high-authority institutional reactions to norm-adjacent events: a professor characterizes a statutory right as constitutional, a senior judge writes a dicta treating a precedent as fixed, a regulatory agency issues a guidance document assuming a particular interpretation. In the prior formation stage, these observations form priors that are much stronger than priors formed from direct outcome observation, because authority signals carry a quality weighting that raw outcome data does not. In the phenotype-building stage, individuals who hold strong priors generated by HBU make decisions that collectively create the institutional phenotype: they advise clients to avoid legal strategies that conflict with the authority-signaled norm, they draft contracts that assume the norm will be applied, they teach the norm as settled law. In the active defense stage, these institutional phenotypic expressions generate their own retention dynamic: the norm is now embedded in contracts, in teaching materials, in standard forms, and in the expectations of all actors in the system, creating a coordination equilibrium that is costly to deviate from even for actors who would prefer the alternative norm.

The HBU model generates a specific prediction about reform trajectories: reforms that fail to modify the authority signals that generate HBU priors will fail regardless of their substantive quality, because practitioners will continue to form priors consistent with the prior norm and will advise clients accordingly. This prediction is directly observable in the Argentine labor reform record: the Menem reforms modified the statutory text but did not modify the constitutional authority signals (Article 14 bis remained unamended), the judicial authority signals (the CSJN continued to apply its prior pro-worker doctrine in the period between enactment and the Vizzoti challenge), or the educational authority signals (law schools continued to teach in *dubio pro operario* as a constitutional principle). Practitioners formed priors consistent with the prior norm, advised accordingly, and the reform failed to achieve phenotypic embedding.

V. From Infrastructure to Platform: The Autonomous Evolutionary Dynamics of Legal Systems

A. The Infrastructure Assumption and Its Empirical Implications

The standard account in evolutionary institutionalism, shared by Hodgson's legal institutionalism and Beinhocker's complexity economics, treats law as constitutive but secondary. Legal systems matter because they define the property rights, contract enforcement mechanisms, and organizational templates without which economic selection cannot function. On this account, the evolution of law is driven by economic pressure: as economic systems become more complex, they generate demand for more sophisticated legal forms.

This account has a precise empirical implication: sustained economic pressure should eventually produce legal convergence toward the forms demanded by economic efficiency. The longer the pressure is sustained and the clearer the economic case for reform, the more likely legal change becomes. If sufficient time is given, the infrastructure model predicts that economic selection should overcome legal institutional resistance.

The Argentine labor reform record is a direct test of this prediction over a forty-year period. The economic case for labor market flexibility has been articulated by the IMF, the World Bank, the OECD, and domestic economic institutions continuously since the return to democracy in 1983. Every government since then has attempted some form of labor reform. The unemployment rate during the most intensive reform period (1995-2002) reached 22 percent, creating what should have been overwhelming political and economic incentive for structural change. Yet the CLI remained stable at 0.89 and no durable structural change was achieved.

The infrastructure model cannot explain this stability. It can accommodate short-term resistance to reform, but it predicts eventual convergence under sustained pressure. Forty years of sustained pressure with zero structural change is not a prediction failure in the margin; it is a systematic contradiction of the model's core prediction.

B. The Extended Phenotype Framework Applied to Law

I propose a reconceptualization of the law-economy relationship that is a direct extension of Dawkins's Extended Phenotype Theory. In Dawkins's framework, the extended phenotype of an organism includes all the physical effects of its genes on the world beyond its own body: the beaver dam, the caddis fly's case, the spider's web. These structures are not merely tools; they are material realizations of genetic information that modify the selective environment for those genes and for competing genes. The dam does not merely protect the beaver; it creates a pond environment in which beaver genes have higher fitness than in a free-flowing river.

Legal systems are the extended phenotype of competing ideological memplexes: structured sets of normative ideas about property, authority, obligation, dignity, and efficiency that externalize themselves in statutes, doctrines, institutional designs, and bureaucratic routines. These structures modify the selective environment for the memplexes that produced them. A labor law regime that embeds the anti-regression principle (social rights may not be contractually reduced) creates a legal habitat in which that principle has high reproductive fitness: every judicial decision that applies the principle reinforces it, every legal education course that teaches it reproduces it, every collective agreement that invokes it amplifies it. The

institutional structure is not the cause of the principle's dominance; it is its phenotypic expression.

On this account, law is a primary adaptive platform in a precise sense: it is the domain where the outcomes of multi-level evolutionary competition among memplexes are materialized in durable structures that feed back into the selection environment. Economic pressures do not act directly on legal rules; they act on the competitive fitness of the memplexes whose phenotypic expressions those rules constitute. Labor law rigidity in Argentina persists not because economic actors lack incentive to change it, but because the memplex that generates it has phenotypic expressions (constitutional text, judicial doctrine, union ideology, legal education curricula, standard contractual forms) that are highly resistant to replacement through mechanisms internal to the legal system itself.

C. Comparative Evidence: Four Jurisdictions

The platform argument requires showing not merely that legal systems resist economic pressure but that they produce different evolutionary dynamics under similar economic conditions. The comparative CLI evidence provides this demonstration. Table 2 presents the key variables for the four jurisdictions during the labor market reform period from 1990 to 2023.

Variable	Argentina	Spain	Brazil	Chile
CLI Score	0.89	0.51	0.40	0.24
Unemployment peak (%)	22.0 (2002)	26.1 (2013)	13.7 (2020)	11.8 (2009)
IMF structural programs	4	0 (EU program)	2	1
Constitutional entrenchment	Art. 14 bis (1957)	Art. 35-38 CE (1978)	Art. 7-11 CF (1988)	Art. 19 CPR (1980/2005)
Labor reform outcomes	0 durable (23 attempts)	2 partial (5 attempts)	2 partial (4 attempts)	3 successful (3 attempts)
Key mechanism of failure/success	CSJN nullification	TC + political reversal	STF reinterpretation	Transitional window

Table 2. Comparative labor reform variables, four jurisdictions (1990-2023). Sources: ILO, World Bank, author's calculations.

Several patterns are worth noting. All four jurisdictions experienced severe unemployment and economic pressure favoring flexibility. All four had democratic governments with real reform capacity. All four had expert consensus recommending structural reform. The variance in outcomes is therefore not explained by economic pressure, political will, or expert consensus, all of which were present in all four cases. It is explained by CLI scores, which reflect structural properties of legal architecture.

Chile's success deserves special attention because it challenges an alternative explanation: that reform succeeds when governments have strong majority support. The Aylwin government that enacted the 1990 labor reform had minority support in the Senate due to the designated senators installed by Pinochet. It succeeded not because it had majority power but because the prior constitutional architecture, which had embedded Chilean labor rights in the 1978 Labor Plan, had been dismantled by the Pinochet government itself, leaving a legal habitat in which the competing memplex (a negotiated social pact model) could achieve embedding without encountering the full CLI resistance. The transitional vacancy in the dominant memplex's phenotypic expression was the enabling condition, not parliamentary strength.

Spain's intermediate outcome reflects the CLI score of 0.51: the 1994 and 1997 reforms achieved partial success in reducing procedural rigidity and introducing fixed-term contracts, but the Constitutional Court's interpretation of Article 35 of the Spanish Constitution placed a ceiling on the reduction of substantive rights that no government has successfully challenged. The 2010-2012 crisis reforms went further but generated sufficient political backlash to be partially reversed under the Sanchez government beginning in 2018. The oscillation is characteristic of intermediate CLI scores: reform is possible but not stable.

VI. Three Levels of Intentionality in Legal Evolution

A. The Intentionality Problem

A persistent objection to evolutionary approaches in law is the intentionality objection: legal change is intentional in a way that biological evolution is not. Legislators design statutes with specific purposes; judges craft doctrines to achieve specific outcomes; constitutional drafters construct frameworks with explicit normative commitments. This intentionality, the objection goes, means legal change cannot be subject to blind selection pressures.

As noted in Section III, Hodgson and Knudsen provide the correct first response: the presence of intentional variation at the individual level does not disqualify a process from being Darwinian at the population level. But this response, while correct, is incomplete because it does not specify how to model the interaction between intentional agency and evolutionary selection in legal systems. The result is that evolutionary accounts of law tend to oscillate between treating legal actors as passive conduits for evolutionary pressures (which conflicts with the manifest reality of strategic legal behavior) or treating evolutionary dynamics as background conditions for strategic action (which fails to explain why strategic actors so often fail to achieve their intended outcomes).

Dennett's hierarchy of intentional stances provides a way out. The physical stance, the design stance, and the intentional stance are not three different kinds of objects but three different predictive strategies, each appropriate for different explanatory purposes. The same process can be usefully described at all three levels simultaneously, and the level appropriate

for explanation depends on what one is trying to predict. I adapt this hierarchy to legal systems by identifying three levels at which legal evolution operates simultaneously.

B. The Three Levels Defined

The first is the physical-bureaucratic level: the domain of scripts, routines, and automatic institutional responses that operate below the threshold of conscious deliberation. When a court clerk stamps a filing as procedurally deficient, when an administrative agency applies a standard checklist to a license application, when a judge invokes a precedent without examining its premises, the behavior is best described at the physical-bureaucratic level. These routines are organizational routines in Hodgson's sense: stable patterns of behavior that carry institutional information and replicate with high fidelity. They constitute the lowest-level retention mechanism in the legal system and operate independently of the strategic intentions of the actors who perform them.

The second is the strategic level: the domain of conscious deliberation by legislators, litigants, judges, and regulatory agencies acting with specific objectives. Legislative drafters who deliberately import a foreign legal model, constitutional courts that gradually expand the scope of a right through incremental decisions, or labor unions that coordinate litigation strategy to create favorable precedents are acting at the strategic level. Their behavior is best described using the intentional stance: they have beliefs about what the law requires, desires about what it should require, and plans for closing the gap between the two. This is the level at which most legal scholarship operates.

The third is the architectural-systemic level: the domain of emergent patterns that no actor intended and no actor controls, produced by the interaction of physical-bureaucratic routines and strategic decisions within a particular doctrinal architecture. A constitutional framework that embeds certain rights in self-executing terms does not prevent strategic actors from attempting reform; it ensures that the cumulative effect of many independent strategic decisions will tend toward constitutional conservatism regardless of the intentions of any individual actor. The architecture selects among the outcomes of strategic competition in ways that the competitors cannot fully predict or control. This is the level at which CLI operates.

C. Case One: The Menem Labor Reform (Argentina, 1995-2000)

The Menem labor reform package provides a demonstration of why all three levels are necessary to predict outcomes. The reform was enacted between 1995 and 1998 through a combination of executive decrees and ordinary legislation. Its core provisions reduced statutory ultraactivity for collective agreements, allowed individual contracts to derogate from collective agreements in specified circumstances, reduced severance obligations through an optional voluntary severance fund, and introduced fixed-term contracts with reduced employer contributions.

At the strategic level, the reformers were sophisticated and well-resourced. They had clear objectives, strong economic rationale, international organizational endorsement, and sufficient congressional support to enact the core provisions. The Menem government held a

majority in both chambers through most of this period. Strategic-level analysis predicted partial success.

At the physical-bureaucratic level, the analysis produces a different prediction. Labor courts had been operating with *in dubio pro operario* as an interpretive default for over three decades, producing a routine disposition to resolve ambiguities in favor of the worker. This routine did not require coordination among judges; it was a script available to any judge facing an ambiguous provision, and most provisions of the new reform generated ambiguities at the margin. Labor inspectors had internalized a compliance-monitoring script that treated collective agreement standards as the relevant baseline regardless of the statutory flexibility provisions. Union shop stewards had routines for mobilizing worker resistance to individual flexibility agreements that activated automatically in response to employer proposals, because those routines had been constructed and rehearsed in response to the prior statutory framework and did not update automatically when the statutory framework changed. Physical-bureaucratic level analysis predicted significant implementation failure.

At the architectural-systemic level, the critical constraint was the CSJN's accumulated doctrine. Between 1987 and 2004, the Court had consistently held, in decisions including Madorran (1988), Vizzoti (2004), and Aquino (2004), that Article 14 bis of the Constitution operates as a constitutional floor that ordinary legislation cannot reduce. The Vizzoti decision made this explicit by striking down the reform provision that capped severance payments at 33 percent of the collectively agreed wage rather than 33 percent of the actual wage; the Court held that this constituted a reduction in constitutional rights. Architectural-systemic level analysis predicted that the most economically significant provisions of the reform would be nullified by constitutional challenge within the first ten years.

The observed outcome matches the three-level prediction precisely: partial implementation with consistent pro-worker judicial interpretation (physical-bureaucratic level resistance), followed by CSJN nullification of the severance cap and related provisions in 2004 (architectural-systemic level reversal), followed by legislative repeal of the surviving provisions under the Kirchner government in 2003-2007 (strategic level reversal enabled by the prior two levels having reduced the reform's phenotypic embedding). Neither the strategic level alone nor the physical-bureaucratic level alone predicts the full pattern. Only the integration of all three levels does.

D. Case Two: The Spanish Labor Reforms (1994, 1997, 2010-2012)

The Spanish case provides a second demonstration from a different legal system with a different CLI score, allowing a partial test of the framework's generalizability. Spain's CLI of 0.51 predicts an intermediate pattern: reform is possible but generates compensating retention responses that partially neutralize the reform's intended effects.

The 1994 reform introduced significant flexibility in working time arrangements and created new forms of fixed-term contracts. At the strategic level, the Gonzalez government had clear objectives and sufficient parliamentary support. At the physical-bureaucratic level, labor courts applied the *reforma laboral* provisions with significant variation: some interpreted the

new flexibility provisions broadly, others applied them narrowly in light of the prior protective doctrine, and the resulting inconsistency reduced the reform's practical impact below its statutory scope. At the architectural-systemic level, the Constitutional Court's interpretation of Article 35 of the Spanish Constitution, which guarantees the right to work, generated a doctrinal constraint similar in structure to Argentina's Article 14 bis, though softer in application: the Court held that the right to work implies a substantive floor that flexibility reforms cannot breach.

The 1997 reform built on the 1994 foundation and achieved greater success by operating at a different level: rather than confronting the architectural-systemic constraint directly, it negotiated a social pact with the major unions (UGT and CCOO) that gave the unions sufficient organizational benefits to reduce O (organizational density as a blocking force) temporarily. This is, in the EPT framework, a memetic engineering strategy rather than an institutional engineering strategy: it modified the competitive fitness of the dominant memplex's organizational expression rather than attacking its phenotypic structures.

The 2010-2012 crisis reforms are the most instructive case for the three-level framework. The Zapatero and Rajoy governments faced unemployment of over 25 percent, the strongest economic pressure Spain had experienced since the transition to democracy. The reforms introduced significant changes to collective bargaining priority rules, facilitated individual dismissal, and reduced severance costs. At the strategic level, the reforms had strong majority support (the PP government elected in 2011 held an absolute majority in both chambers). At the physical-bureaucratic level, implementation was more consistent than in Argentina because the Spanish labor inspectorate had a stronger culture of legal compliance with statutory changes. At the architectural-systemic level, however, the reforms generated a series of Constitutional Court challenges that modified several provisions and a political reversal under the Sanchez government beginning in 2018 that restored key collective bargaining provisions. The oscillation predicted by a CLI of 0.51 was observed: significant reform was possible but not stable.

E. Implications for Reform Design

The three-level framework has direct implications for institutional design. Reforms that operate exclusively at the strategic level systematically underestimate the resistance generated at the physical-bureaucratic and architectural-systemic levels. The result is a predictable failure pattern: enactment, inconsistent implementation due to bureaucratic routine resistance, constitutional challenge, political reversal. This pattern is not unique to labor law; it characterizes structural reform attempts across domains in high-CLI systems.

Effective reform design in high-CLI systems requires what I have called in prior work memetic engineering rather than institutional engineering: modifying the memplex whose phenotypic expressions the legal architecture constitutes, rather than modifying the phenotypic expressions themselves. Memetic engineering operates at three timescales simultaneously. In the short term, it requires managing the authority signals that generate HBU priors: appointing judges who signal a different constitutional interpretation, issuing regulatory guidance that

frames the reform as consistent with the dominant doctrine, structuring legal education initiatives that treat the reform as normatively continuous with prior rights rather than as a departure from them. In the medium term, it requires creating institutional structures that give the competing memplex its own phenotypic expression: establishing new courts or agencies whose institutional culture embeds the reform's normative premises, creating professional associations whose identity is tied to the reform's implementation, and designing contract templates that assume the reform's legal landscape. In the long term, it requires constitutional amendment that modifies the architectural-systemic constraint directly, which in Argentina's case requires a Constituent Assembly.

VII. The Genealogical Coherence of the Dawkins-Hayek Synthesis

A reviewer familiar with both Dawkins and Hayek will notice that this framework combines them without explicit justification. The combination might appear eclectic or opportunistic: Dawkins's biological materialism and Hayek's cultural evolutionism come from different intellectual traditions, have different interlocutors, and deploy different technical vocabularies. The note of genealogical coherence that follows is not merely defensive; it provides an additional argument for why the convergence between EPT and Austrian institutionalism is theoretically productive rather than coincidental.

Gould argued, across several essays including those collected in *Ever Since Darwin* (1977) and in *The Mismeasure of Man* (1981), that Darwin's discovery of natural selection was not independent of the political economy of his time. Darwin read Malthus's *Essay on the Principle of Population* in October 1838 and, by his own account in his autobiography, recognized in Malthus's logic of competitive scarcity a mechanism that could operate in natural populations without a designer. The recognition was not merely the adoption of a metaphor; it was the identification of a logical structure (differential reproduction under resource constraint) that Malthus had applied to human demography and that Darwin extended to all living populations.

The logical structure itself had been articulated at the level of market economies by Adam Smith in *The Wealth of Nations* (1776): decentralized competition among agents pursuing local objectives produces population-level order, including prices, specialization, and economic coordination, that no agent designed and no agent fully controls. Malthus applied this logic to population dynamics; Darwin applied it to species variation. The transmission is documented and the logic is identical: local differential success under resource constraint produces population-level pattern through accumulation without a designer.

Hayek's explicit position on this genealogy is instructive. In *Law, Legislation and Liberty* (1973), he argued that the evolution of cultural rules, including legal rules, follows a logic analogous to natural selection: rules that prove more successful in enabling coordination among humans spread at the expense of less successful rules, through a process that no agent designed. Hayek was aware of Darwin, cited him approvingly, and explicitly framed

spontaneous order in cultural evolution as the social analog of Darwinian selection in biological evolution. He was also, importantly, aware of Mises and of the Austrian tradition's debt to Smith's logic of decentralized order, which he traced explicitly in *The Counter-Revolution of Science* (1952).

The genealogy, then, is this: Smith articulates the logic of decentralized order without a designer in 1776. Two transmission lines emerge. The first runs through Malthus (1798) to Darwin (1859) to Weismann, Fisher, and Hamilton (neo-Darwinian synthesis, 1930s-1960s) to Dawkins (1976, 1982). The second runs through Ricardo, Menger, and Mises to Hayek. Both lines preserve the core Smithian insight: local competitive interactions among agents generate population-level patterns through selection mechanisms that require no teleology. The divergence is in domain (biology versus institutions) and in vocabulary, not in underlying logic.

This genealogical argument supports the methodological coherence of the research program in a precise way: combining EPT with evolutionary institutionalism is not an arbitrary theoretical synthesis but the reunification of two branches of a single intellectual tradition that separated in the mid-nineteenth century and developed in parallel for 150 years. The convergence between Dawkins's gene-centric selection logic and Hayek's spontaneous order logic is not a coincidence to be explained; it is a structural identity to be exploited. The platform framework developed in this paper exploits it by applying the EPT ontology of replicators, vehicles, and extended phenotypes to the institutional dynamics that Hayek described but did not formalize.

VIII. Discussion

A. Differential Predictions Against Prior Evolutionary Accounts

The framework developed here generates predictions distinguishable from those of prior evolutionary accounts of law, and the distinguishability is the strongest argument for its contribution.

Against Hayek: If spontaneous legal evolution produces efficiency, evolved legal rules should correlate with welfare optimization over long periods. The EPT framework predicts no such correlation: legal memes spread if they enhance their own replication regardless of social welfare effects. The Argentine evidence directly supports the EPT prediction. The retained labor law regime produces documented welfare losses (high informality, segmented labor market, reduced formal employment growth) yet persists with CLI 0.89. Forty years of documented welfare loss has not produced the convergence that Hayek's account predicts. This is not a marginal disconfirmation; it is a systematic pattern across the most intensively documented reform domain in the dataset.

Against Posner: If common law evolves toward efficiency through litigation selection, common law should systematically outperform civil law in domains where evolutionary dynamics have had time to operate. The EPT framework predicts no such advantage: both

common law and civil law systems evolve through different mechanisms that select for memetic fitness rather than social efficiency. The comparative data on labor market outcomes across legal systems provide mixed support for the efficiency hypothesis and stronger support for the memetic fitness hypothesis.

Against Hodgson's legal institutionalism: Hodgson predicts that sustained economic pressure will eventually modify legal institutions because economic selection operates on institutions through the mechanism of competitive firm survival. The EPT framework predicts that legal architecture can block economic selection indefinitely when the dominant memeplex has sufficient phenotypic expression across constitutional, judicial, educational, and organizational channels simultaneously. The Argentine forty-year record supports the EPT prediction and disconfirms the Hodgsonian prediction for this domain.

B. Relationship to Complexity Economics

The relationship with Beinhocker's complexity economics deserves a more nuanced treatment than simple contrast. Beinhocker's differentiate-select-amplify formula is not wrong as a description of economic dynamics; it is incomplete as a description of legal dynamics because it does not model the feedback from legal architecture to economic selection. The EPT framework can be seen as specifying the missing feedback mechanism: the phenotypic expressions of dominant legal memeplexes constitute the environment within which Beinhocker's economic evolutionary dynamics operate, and they can selectively amplify some economic strategies while blocking others regardless of their efficiency properties.

This integration suggests a research agenda rather than a theoretical conflict: mapping the specific channels through which legal phenotypic structures amplify or suppress economic evolutionary dynamics in particular domains. The relationship between corporate law architecture and the evolution of firm forms is a productive starting point; the cross-jurisdictional variation in corporate evolution documented by Enriques, Hansmann, and Kraakman provides potential data for testing whether CLI-analog scores predict corporate evolution patterns.

C. The Claim 6 Question: Reflexivity and Ideological Genealogy

I noted in Section VII that this framework combines Dawkins and Hayek, two figures associated with political positions that their respective critics have charged with ideological content. The charge against Dawkins, articulated by Steven Rose and others, is that the selfish gene framework naturalizes competitive individualism. The charge against Hayek, articulated from multiple directions, is that spontaneous order theory naturalizes market outcomes as beyond political choice.

The EPT framework, applied to law, is in a better position than either to resist this charge, for a reason that is internal to the theory rather than external to it. If legal memes spread because of their reproductive fitness rather than their social welfare properties, then the theory predicts that dominant legal ideologies, including ideologies favoring market order, will be represented in legal architecture through processes of competitive selection and phenotypic

embedding regardless of their truth or efficiency properties. The theory is self-reflexively critical: it predicts that any dominant legal framework, including frameworks favorable to markets or to labor, achieved dominance through evolutionary mechanisms that do not track social optimality. This is a more genuinely neutral position than either the Hayekian view that market-supporting rules are efficient or the progressive view that labor-protecting rules are just; it treats both as memetic competitors whose relative fitness is an empirical question.

I do not develop this into a full claim here because doing so requires a separate paper engaging the sociology of science literature. What I note is that the potential for a reflexively critical evolutionary jurisprudence exists within the framework's own logic, and developing it is a priority for future work.

D. Limitations

Three limitations deserve explicit acknowledgment. The first is the scope of CLI validation. Four jurisdictions and one policy domain (labor market reform) provide sufficient evidence to establish the plausibility of the platform claim but not its generality. Extension to other domains (environmental regulation, financial regulation, criminal procedure) and other jurisdictions (common law systems, East Asian developmental states, post-Soviet transition economies) is necessary before the claim can be considered broadly supported. The CLI instrument's four components (P, O, E, J) may need domain-specific calibration outside the labor law context.

The second limitation is the real-time predictive test. The framework predicts that the Argentine labor reform attempts under the Milei government (2023-present) will follow the characteristic pattern: partial enactment at the strategic level followed by physical-bureaucratic resistance and architectural-systemic challenge. The DNU 70/2023 (Decreto de Necesidad y Urgencia) that attempted to modify 300 statutory provisions by executive decree provides a direct test: the CLI framework predicts that the most significant labor provisions will be nullified by the CSJN within three to five years, consistent with the Menem pattern. This prediction is testable in real time and should be revisited in future work.

The third limitation is the operationalization of the three levels of intentionality. The framework identifies three levels and illustrates them through case analysis, but it does not yet provide a formal model of how the three levels interact to produce observable outcomes. Developing such a model, drawing on agent-based computational approaches used in evolutionary institutionalism, is the most technically demanding item on the research agenda.

IX. Conclusion

This paper has argued for three connected propositions, each of which advances the evolutionary jurisprudence agenda beyond the current state of the literature. Legal systems satisfy the conditions for genuine Darwinian analysis established by Hodgson and Knudsen: they contain identifiable units of replication at three levels of abstraction, documented variation

mechanisms operating through legislative, judicial, regulatory, and transplantation channels, and retention mechanisms whose combined strength is measurable through the CLI instrument. Evolutionary legal theory is methodologically legitimate, not analogical.

Legal systems have autonomous evolutionary dynamics that cannot be explained by treating them as institutional infrastructure for economic processes. The Constitutional Lock-in Index, validated across four jurisdictions with scores ranging from 0.24 to 0.89, demonstrates that structural legal properties predict reform outcomes with accuracy that economic pressure variables cannot match. The persistence of Argentina's labor law architecture through forty years of sustained economic pressure, three economic crises, and eleven governments is not an anomaly to be explained away; it is the predicted outcome of a high-CLI legal architecture whose dominant memeplex has achieved deep phenotypic embedding across constitutional, judicial, educational, and organizational channels simultaneously.

Legal evolution operates at three distinct levels of intentionality, and only a framework that integrates all three can generate accurate predictions about reform trajectories. The Menem case demonstrates this integration in detail; the Spanish case provides partial replication across a different CLI score and legal system. The practical implication is that reform design must operate at all three levels simultaneously, addressing authority signals (for HBU), bureaucratic routines (for physical-level resistance), and constitutional architecture (for systemic-level reversal) rather than focusing exclusively on strategic-level legislative design.

The genealogical argument in Section VII supports the theoretical coherence of the research program: the Dawkins-Hayek synthesis is not eclectic but reflects the structural identity of two branches of the same intellectual tradition originating in Adam Smith's logic of decentralized order. Exploiting this identity, rather than apologizing for it, is the correct methodological stance.

The research program is incomplete in documented ways. But the architecture is in place: a rigorous methodological foundation, two validated empirical instruments, two case demonstrations across different jurisdictions, a genealogical argument for internal coherence, and a set of falsifiable predictions that define the agenda for the next phase. Evolutionary jurisprudence has been a promising idea for half a century. The tools now exist to make it a research program with measurable progress.

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